



INDIAN POLITY

- **POSITION OF RAJYA SABHA**
- **PARLIAMENTARY PRIVILEGES**

MODULE – 71



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POSITION OF RAJYA SABHA

LOK SABHA



RAJYA SABHA

Vs



The Constitutional position of the Rajya Sabha (as compared with the Lok Sabha) can be studied from three angles:

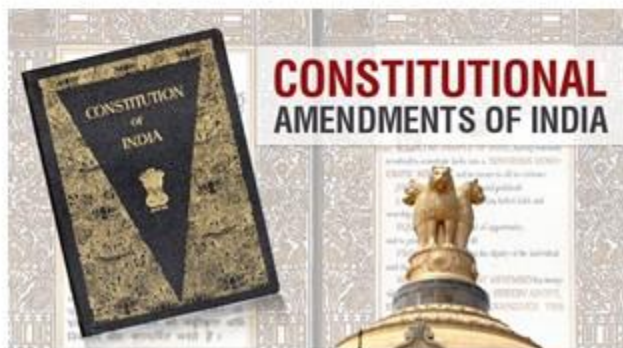
1. Where Rajya Sabha is equal to Lok Sabha.
2. Where Rajya Sabha is unequal to Lok Sabha.
3. Where Rajya Sabha has special powers that are not at all shared with the Lok Sabha.

PARLIAMENT

POSITION OF RAJYA SABHA

EQUAL STATUS WITH LOK SABHA

In the following matters, the powers and status of the Rajya Sabha are equal to that of the Lok Sabha:



- 1 Introduction and passage of **ordinary bills**.
- 2 Introduction and passage of **Constitutional amendment bills**.
- 3 Introduction and **passage of financial bills** involving expenditure from the Consolidated Fund of India.
- 4 Election and impeachment of the **president**.

PARLIAMENT

POSITION OF RAJYA SABHA

EQUAL STATUS WITH LOK SABHA



- 5** Election and removal of the **Vice President**. However, Rajya Sabha alone can initiate the removal of the vice-president. He is removed by a resolution passed by the Rajya Sabha by a special majority and agreed to by the Lok Sabha by a simple majority.

- 6** Making recommendation to the President for the removal of Chief Justice and judges of Supreme Court and high courts, chief election commissioner and comptroller and auditor general.

- 7** Approval of **ordinances** issued by the President.

- 8** Approval of proclamation of all three types of **emergencies** by the President.

PARLIAMENT

POSITION OF RAJYA SABHA

EQUAL STATUS WITH LOK SABHA



UPSC



9 **Selection of ministers including the Prime Minister.** Under the Constitution, the ministers including the Prime Minister can be members of either House. However, irrespective of their membership, they are responsible only to the Lok Sabha.

10 **Consideration of the reports of the constitutional bodies** like Finance Commission, Union Public Service Commission, comptroller and auditor general, etc.

11 **Enlargement of the jurisdiction** of the Supreme Court and the Union Public Service Commission.

PARLIAMENT

POSITION OF RAJYA SABHA

UNEQUAL STATUS WITH LOK SABHA

In the following matters, the powers and status of the Rajya Sabha are unequal to that of the Lok Sabha:



— PARLIAMENT OF INDIA —

- 1 A Money Bill can be introduced only in the Lok Sabha and not in the Rajya Sabha.

- 2 Rajya Sabha cannot amend or reject a Money Bill. It should return the bill to the Lok Sabha within 14 days, either with recommendations or without recommendations.

- 3 The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha. In both the cases, the money bill is deemed to have been passed by the two Houses.

PARLIAMENT

POSITION OF RAJYA SABHA

UNEQUAL STATUS WITH LOK SABHA



- 4 A financial bill, not containing solely the matters of Article 110, also can be introduced only in the Lok Sabha and not in the Rajya Sabha. But, with regard to its passage, both the Houses have equal powers.

- 5 The final power to decide whether a particular bill is a Money Bill or not is vested in the Speaker of the Lok Sabha.

- 6 The Speaker of Lok Sabha presides over the joint sitting of both the Houses.

- 7 The Lok Sabha with greater number wins the battle in a joint sitting except when the combined strength of the ruling party in both the Houses is less than that of the opposition parties.

PARLIAMENT

POSITION OF RAJYA SABHA

UNEQUAL STATUS WITH LOK SABHA



NO-CONFIDENCE MOTION



- 8 Rajya Sabha can only discuss the budget but **cannot vote on the demands for grants** (which is the exclusive privilege of the Lok Sabha).
- 9 A resolution for the **discontinuance of the national emergency** can be passed only by the Lok Sabha and not by the Rajya Sabha.
- 10 The Rajya Sabha cannot remove the council of ministers **by passing a no- confidence motion**. This is because the Council of ministers is collectively responsible only to the Lok Sabha. But, the Rajya Sabha can discuss and criticize the policies and activities of the government.

PARLIAMENT

POSITION OF RAJYA SABHA

SPECIAL POWERS OF RAJYA SABHA



**All India Services
IAS, IFS, and IPS**



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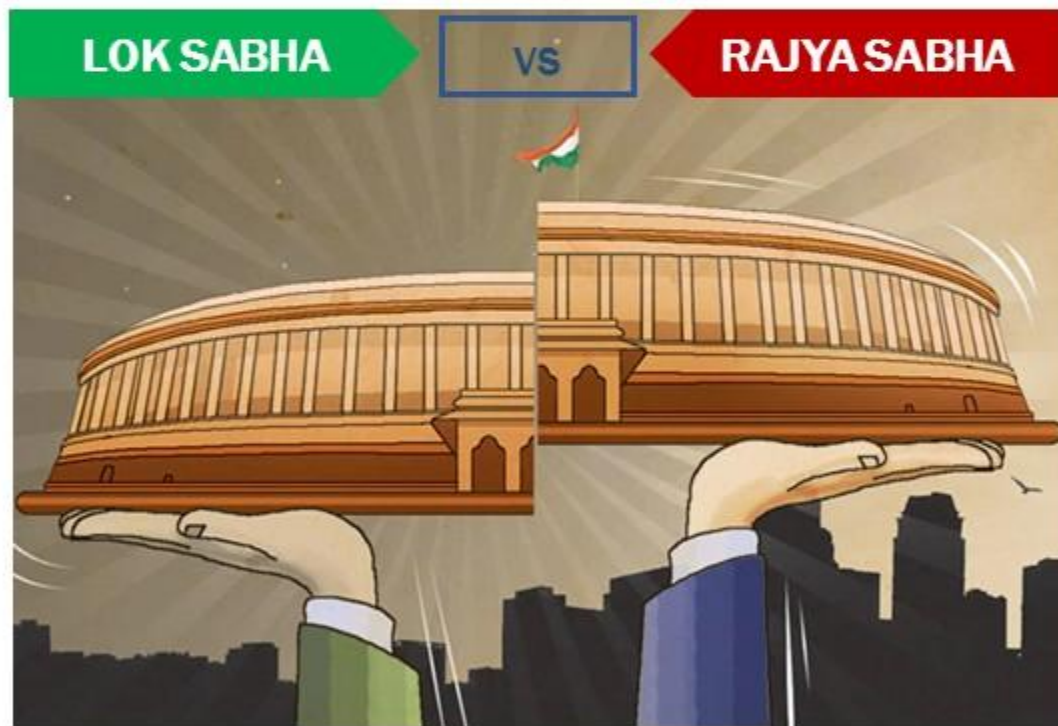
Due to its federal character, the Rajya Sabha has been given **two exclusive or special powers** that are not enjoyed by the Lok Sabha:

- It can authorize the Parliament to make a law on a subject enumerated in the State List (**Article 249**).
- It can authorise the Parliament to create new All-India Services common to both the Centre and states (**Article 312**).

PARLIAMENT

POSITION OF RAJYA SABHA

SPECIAL POWERS OF RAJYA SABHA



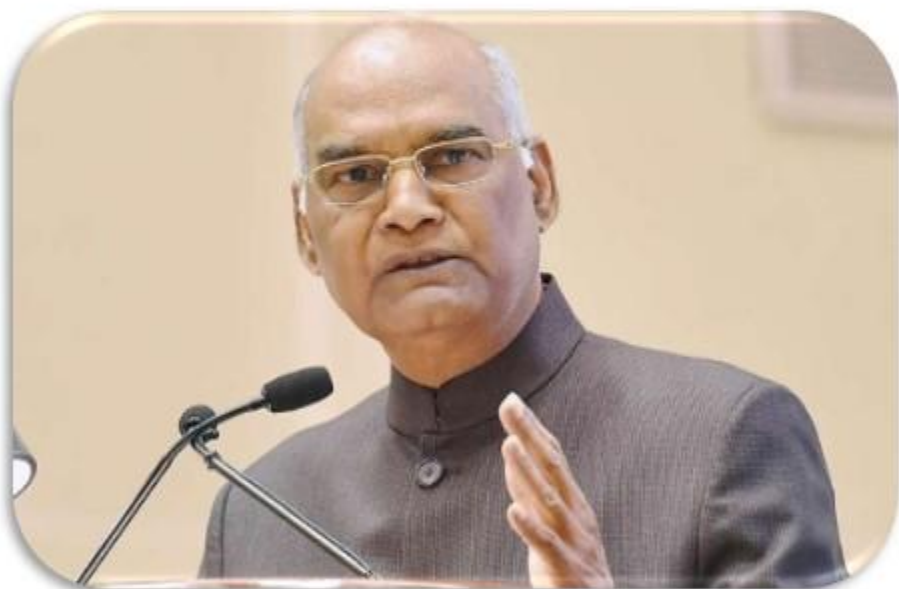
2 An analysis of the above points makes it clear that the position of the Rajya Sabha in our constitutional system is not as weak as that of the House of Lords in the British constitutional system nor as strong as that of the Senate in the American constitutional system.

3 Except in financial matters and control over the council of ministers, the powers and status of the Rajya Sabha in all other spheres are broadly equal and coordinate with that of the Lok Sabha.

PARLIAMENT

POSITION OF RAJYA SABHA

SPECIAL POWERS OF RAJYA SABHA



- 4 Even though the Rajya Sabha has been given less powers as compared with the Lok Sabha, its utility is supported on the following grounds:
1. It checks **hasty, defective, careless and ill-considered legislation** made by the Lok Sabha by making provision of revision and thought.
 2. It facilitates giving representation to eminent professionals and experts who cannot face the **direct election**. The President nominates 12 such persons to the Rajya Sabha.
 3. It **maintains the federal equilibrium** by protecting the interests of the states against the undue interference of the Centre.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

MEANING

- 1 Parliamentary privileges are **special rights, immunities and exemptions** enjoyed by the two Houses of Parliament, their committees and their members.
- 2 These are present not because of any exacted position of the members, but these are considered absolutely essential to **regulate its own proceedings in a disciplined, efficient and undisturbed manner.**
- 3 The idea of **privilege** emerged in England as Parliament started to protect itself from excesses by the monarch.
- 4 It established several rights and privileges including the freedom of members of Parliament **to freely speak and vote in Parliament (including its committees).**
- 5 Without these privileges, the Houses can neither **maintain their authority, dignity and honour** nor can protect their members from **any obstruction** in the discharge of their parliamentary responsibilities.
- 6 The Constitution has also extended the parliamentary privileges to those **persons who are entitled to speak and take part in the proceedings of a House of Parliament or any of its committees.**

PARLIAMENT

PARLIAMENTARY PRIVILEGES

EXAMPLES OF BREACH OF PARLIAMENTARY PRIVILEGES



RAVI BELAGERE & ANIL RAJ

Example 1 :

- The Karnataka Legislative Assembly has found two journalists– **Ravi Belagere and Anil Raj**-- guilty of **breach of its privilege** and sentenced them to jail.
- This case once again raises the question of what should constitute privilege of the legislative bodies.

Example 2 :

- In 2003, the Tamil Nadu assembly Speaker directed the arrest of five journalists of The Hindu newspaper for publishing articles and an editorial that were critical of the AIADMK government

PARLIAMENT

PARLIAMENTARY PRIVILEGES

EXAMPLES OF BREACH OF PARLIAMENTARY PRIVILEGES



PM NARENDRA MODI NIRMALA SITHARAMAN

Example 3 :

- The Congress recently moved a breach of privilege motion against PM Narendra Modi and Nirmala Sitharaman on Rafale fighter jet deal issue.
- The Congress claimed that they had misled the Parliament by giving wrong information on the price of the Rafale jets.



PARLIAMENTARY PRIVILEGES

PARLIAMENTARY PRIVILEGES IN THE INDIAN SCENARIO



PARLIAMENT OF INDIA

1 The Indian Constitution specifies the powers and privileges of Parliament in Article 105 and those of State legislatures in Article 194.

2 They provide freedom of speech in Parliament subject to other provisions of the Constitution and standing orders of the House.

3 It gives immunity for all speeches and votes in Parliament from judicial scrutiny.

4 Till now, the Parliament and state legislatures have not codified the Parliamentary privileges.

5 In fact, the privileges rest on conventions and not upon any strong legislative framework.

With no codified laws for what constitutes a breach of privilege offence or prescriptions for punishment, this is largely a grey area in legal terms.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

WHAT IS A PRIVILEGE MOTION? WHO CAN MOVE IT?



1 Parliamentary privileges are certain rights and immunities enjoyed by members of Parliament, individually and collectively, so that they can “effectively discharge their functions”.

2 When any of these rights and immunities are disregarded, the offence is called a breach of privilege and is punishable under law.

3 A notice is moved in the form of a motion by any member of either House against those being held guilty of breach of privilege.

4 Each House also claims the right to punish as contempt actions which are offences against its authority and dignity.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

HOW IS THE PRIVILEGE MOTION MOVED?



- 1 First of all, a member with the consent of the Speaker or the Chairperson, raise a question involving a breach of privilege either of a member or of the House or of a committee thereof.

- 2 The notice should be related to an incident of recent occurrence and should need the intervention of the House.

- 3 Such notices have to be given before 10 A.M to the Speaker or the Chairperson

- 4 The Speaker/RS chairperson is the first level of scrutiny of a privilege motion.

- 5 The Speaker/Chair can decide on the privilege motion himself or herself or refer it to the privileges committee of Parliament.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

WHAT IS THE PRIVILEGES COMMITTEE?

- 1 The functions of this committee are **semi-judicial in nature**.
- 2 It examines the cases of breach of privileges of the House and its members and **recommends appropriate action**.
- 3 The LS committee has 15 members, while the RS committee has 10 members.
- 4 A report is submitted by the privileges committee which is **presented to the House for its consideration**.
- 5 The Speaker may permit **a half-hour debate while considering the report**.
- 6 The Speaker may then direct that the report be tabled before the House.
- 7 A resolution may then be moved relating to the **breach of privilege that has to be unanimously passed**.

Though dozens of people are summoned every year before the privileges committees of Parliament and state legislatures on charges of breach of privilege of legislators, it is rare that punitive action like imprisonment has been ordered.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

WHAT HAPPENS AFTER PRIVILEGE NOTICES ARE SUBMITTED



INDIRA GANDHI

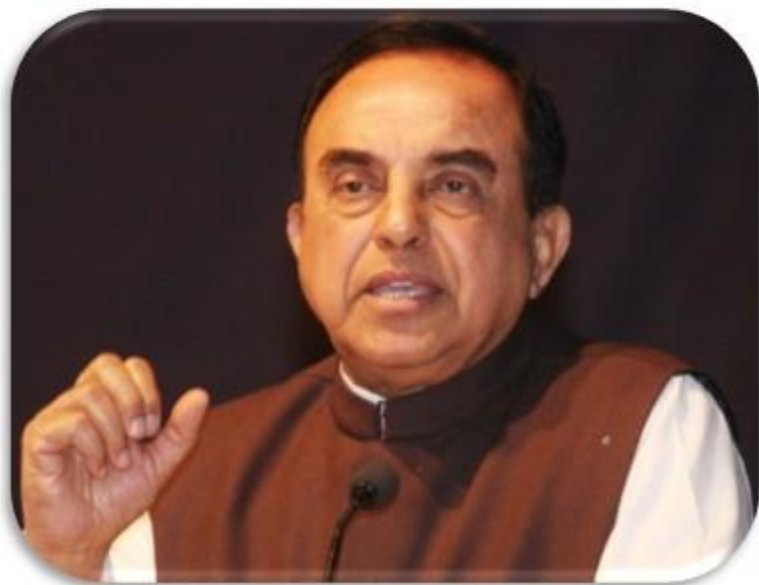
Example 1 :

- The most significant case was in 1978 when Indira Gandhi, who had just won the Lok Sabha elections from Chikmagalur, was expelled from the House.
- Then home minister Charan Singh moved a resolution of breach of privilege against her following observations made by the Justice Shah Commission which probed excesses during the Emergency.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

WHAT HAPPENS AFTER PRIVILEGE NOTICES ARE SUBMITTED



SUBRAMANIAN SWAMY

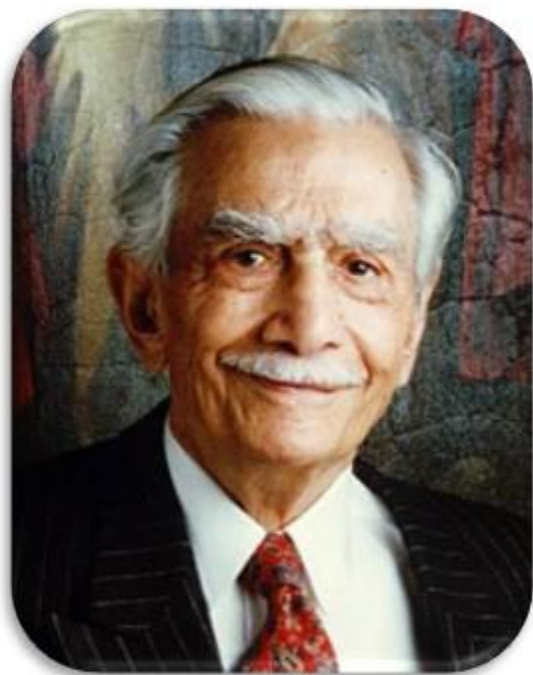
Example 2 :

- Another case was expulsion of Subramanian Swamy from the Rajya Sabha in 1976.
- Swamy was charged with bringing disrepute to Parliament by his activities through interviews in foreign publications that were construed as anti-India propaganda.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

WHAT HAPPENS AFTER PRIVILEGE NOTICES ARE SUBMITTED



R K KARANJIA

Example 3 :

- In another instance, **Blitz editor R K Karanjia** was held guilty of gross breach of privilege of the House in 1961.
- Blitz had published an article that lampooned veteran leader J B Kripalani. He was summoned to the bar of the Lok Sabha and reprimanded, while the Lok Sabha gallery pass of his correspondent, R K Raghavan, was cancelled.

PARLIAMENTARY PRIVILEGES

CLASSIFICATION

Parliamentary privileges can be classified into two broad categories:

1. those that are enjoyed by each House of Parliament collectively, and
2. those that are enjoyed by the members individually.

COLLECTIVE PRIVILEGES

The privileges belonging to each House of Parliament collectively are:

- 1 It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same. The 44th Amendment Act of 1978 restored the freedom of the press to publish true reports of parliamentary proceedings without prior permission of the House. But this is not applicable in the case of a secret sitting of the House.
- 2 It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

CLASSIFICATION

COLLECTIVE PRIVILEGES

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| <p>3 It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.</p> | <p>6 It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.</p> |
| <p>4 It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition or imprisonment (also suspension or expulsion, in case of members).</p> | <p>7 The courts are prohibited to inquire into the proceedings of a House or its committees.</p> |
| <p>5 It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.</p> | <p>8 No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.</p> |

PARLIAMENT

PARLIAMENTARY PRIVILEGES

CLASSIFICATION

INDIVIDUAL PRIVILEGES

The privileges belonging to the members individually are:

FREEDOM FROM ARREST

They cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.

FREEDOM OF SPEECH,

They have freedom of speech in Parliament. No member is liable to any proceedings in any court for anything said or any vote given by him in Parliament or its committees. This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament.

PARLIAMENT

PARLIAMENTARY PRIVILEGES

CLASSIFICATION

INDIVIDUAL PRIVILEGES

The privileges belonging to the members individually are:



EXEMPTION FROM ATTENDANCE AS JURORS AND WITNESSES.

They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.

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